

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC.
d/b/a EZ CRUISE PARKING; LIGHTHOUSE
PARKING, INC.; and SYLVIA ROBLEDO d/b/a
81ST DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE
GALVESTON WHARVES and THE GALVESTON
PORT FACILITIES CORPORATION**

JOINT PETITION FOR APPROVAL OF PARTIAL SETTLEMENT

SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ CRUISE PARKING and (“EZ Cruise”) LIGHTHOUSE PARKING (“Lighthouse”) and THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES and THE GALVESTON PORT FACILITIES CORPORATION (jointly, the "Parties") have reached a settlement in this case and hereby petition the Federal Maritime Commission ("FMC") to approve of the Partial Settlement Agreements (attached as Exhibit A and B), dismissal of the claims they have asserted against each other in FMC Docket No. 14-06 with prejudice, requested pursuant to Rule 91 and 46 C.F.R. 502.5 (Rule 5).

Procedural History

On June 16, 2014, Complainants filed their verified complaint against Respondents alleging various violations of the Shipping Act with regard to access fees charged by Respondents for access to the Port of Galveston Cruise Terminal Nos. 1 and 2 (the “Terminal”) and changes made by Respondents in July of 2014 to its Tariffs regarding such access fees. The matter was assigned to Administrative Law Judge Clay G. Guthridge. On July 21, 2014, Respondents filed their verified answer to the complaint denying all allegations. On October 21, 2014, Respondent filed a Motion to Dismiss. On October 24, 2014, Complainants filed an amended verified complaint. On November 21, 2014, Judge Clay issued his Order on Pending Motions and Partial Dismissal which dismissed some of Complainants claims. This order was not appealed. The parties conducted discovery and filed their briefs and responsive briefs and supporting appendices. On December 28, 2015, Judge Clay issued his Initial Decision denying all relief to Complainants. After appeal to the Commission, the Commission issued its Order Affirming Initial Decision dismissing the complaint. Complainants appealed to the United States Court of Appeals for the District of Columbia which reversed and remanded the matter to the Commission on May 11, 2018. Lighthouse did not join in that appeal. The Commission then, on August 9, 2018, remanded the proceeding to Judge Clay. After additional briefing from the parties, Judge Clay issued his Initial Decision on Remand on November 16, 2018. On appeal, the Commission issued its Order on Initial Decision on Remand on April 16, 2021, affirming and reversing portions of the Initial Decision on Remand and remanding the proceeding for a determination of reparations and attorney’s

fees in favor of Complainants. On April 20, 2021, the Commission reassigned the remanded proceeding to the Honorable Erin M. Wirth. ON May 17, 2021, Respondent files its Verified Petition for Reconsideration which is currently pending. Complainants responded to the Verified Petition for Reconsideration on June 1, 2021. Respondents' Verified Petition for Reconsideration which is currently pending as is the remanded proceeding regarding reparations.

On July 15, 2014, Complainants also filed a complaint in U.S. district court seeking, among other things, a preliminary injunction under the Shipping Act to bar Respondents from enforcing the July 2014 Tariff in a proceeding styled Santa Fe Discount Cruise Parking v. The Board of Trustees of the Galveston Wharves, No. 3:14-cv-00206 in the Southern District of Texas, Houston Division. The case remains pending. The proposed settlement resolves both cases as to Complainants EZ Cruise and Lighthouse.

The Settlement Should Be Approved

The FMC has a strong and consistent policy of "encourag[ing] settlement and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.*Inlet Fish Producers, Inc. v. Sea-Land Service, Inc.*, 29 SRR 975, 978 (ALJ 2002) (quoting *Old Ben Coal Co. v. Sea-Land Services, Inc.*, 18 SRR 1085, 1091 (ALJ 1978)). The Commission's policies, its Rules of Practice, and the Administrative Procedures Act all encourage settlements. *See id.* at 1092. The FMC has noted:

The resolution of controversies by means of compromise and settlement is generally faster and less expensive than litigation; it results in a saving of time for the Parties, the lawyers, and the courts, and it is thus advantageous to judicial administration, and, in turn to government as a

whole. Moreover, the use of compromise and settlement is conducive to amicable and peaceful relations between the parties to a controversy.

Id. (citation omitted).

In determining potential approval of a settlement, the Commission examines whether the proposal "reflects careful consideration by the parties of a variety of factors, including the relative strengths of their positions weighed against the risks and costs of continued litigation." *APM Terminals N. Am., Inc. v. Port Auth. of N.Y. & N.J.*, 31 SRR 623, 636 (FMC 2009) (quoting *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia — New Zealand Conference Columbus Line, Inc.*, 24 SRR 1129, 1134 (ALJ 1988)). However, the primary factor to be considered is the FMC's "strong and consistent policy of encouraging settlements and engaging in every presumption which favors a finding that they are fair, correct, and valid." *APM Terminals*, 31 SRR at 625 (quoting *Inlet Fish Producers*, 29 SRR at 978) (internal quotation marks and brackets omitted).

In the instant case, the settlement is the result of arm's-length negotiations between sophisticated complainants and respondents, all of whom have been represented by counsel during the negotiation process. The proposed agreement does not contravene any law or public policy, nor is it unjust or discriminatory in any way. Additionally, this agreement will not result in any adverse effects to any third parties or on the shipping public. Indeed, the Parties' disputes concern "access fees" assessed under Tariff provisions which no longer exist. The proposed settlement is fair and reasonable and reflects the Parties' desire to resolve their issues without the need for costly and uncertain litigation.

As a result of the foregoing, the Parties respectfully request that this Joint Petition for Approval of Settlement be granted on an expedited basis, that the Parties' settlement be approved, and that this action be dismissed with prejudice, with each party to bear its own costs and attorney fees.

Respectfully submitted by:

/s/Douglas T. Gilman
GILMAN & ALLISON, LLP
Douglas T. Gilman
dgilman@gilmanallison.com
2005 Cullen Blvd.
Pearland, Texas 77581

**COUNSEL FOR SANTA FE DISCOUNT CRUISE
PARKING, INC. D/B/A EZ CRUISE PARKING
AND LIGHTHOUSE PARKING, INC.**

/s/ Anthony P. Brown
MCLEOD, ALEXANDER, POWEL, & APFFEL, P.C.
Anthony P. Brown
802 Rosenberg
Galveston, Texas 77553
Phone: (409) 763-2481
Fax: (409) 762-1155
Email: apbrown@mapalaw.com

**ATTORNEYS FOR THE BOARD OF TRUSTEES
OF THE GALVESTON WHARVES AND
GALVESTON PORT FACILITIES
CORPORATION**

CERTIFICATE OF SERVICE

I certify that a copy of this motion was served on all counsel of record below by electronic mailing on July 26, 2021:

Douglas T. Gilman
Gilman & Allison, LLP
2005 Cullen Blvd.
Pearland, Texas 77581

/s/Anthony P. Brown
Anthony P. Brown

**Exhibit A – Partial Settlement Agreement –
Santa Fe Discount Parking d/b/a EZ Cruise Parking**

**Exhibit B – Partial Settlement Agreement –
Lighthouse Parking**

EXHIBIT A

PARTIAL SETTLEMENT AGREEMENT

This Partial Settlement Agreement (the "Agreement") is entered into on the 22nd day of July, 2021 (the "Effective Date") by and between the following parties: Santa Fe Discount Courts Parking, Inc. d/b/a EZ Cruise Parking ("EZ Cruise"), and Board of Trustees of the Galveston Wharves ("Board") and Galveston Port Facilities Corporation ("GPFC") (each a "Party," and collectively the "Parties"). Hereafter, Board and GPFC are collectively referred to as "Wharves".

Recitals:

1. The Parties to this Agreement have agreed to compromise and settle all matters in dispute between them¹ in the following related FMC Proceeding and Federal District Court lawsuit (hereinafter collectively referred to for all purposes in this Agreement as the "Litigation");

- a. Docket No. 24-06, *Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking, Lighthouse Parking, Inc. and Sylvia Robledo d/b/a 81" Dolphin Parking v. The Board of Trustees of the Galveston Wharves and The Galveston Port Facilities Corporation* (the "FMC Proceeding"); and
- b. Case No. 3:14-cv-00206; *Santa Fe Discount Cruise Parking, et al. v. The Board of Trustees of the Galveston Wharves, et al.*; in the United States District Court for

¹ Sylvia Robledo d/b/a 81" Dolphin Parking and Wharves have not compromised and settled their claims against each other, which remain pending in the Litigation. Ms. Robledo is not a party to this Agreement.

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the Southern District of Texas, Houston Division (the "Federal District Court Lawsuit").

2. By entering into this Agreement, the Parties intend to compromise and settle, fully, finally, and forever, all disputes and controversies existing between or among them only with respect to the Released Claims (defined herein) asserted in the Litigation.

3. By entering into this Agreement, no Party is conceding any wrongdoing, liability, or fault by such Party or to any other Party.

4. The Parties enter into this Agreement solely to avoid the cost and uncertainty of continued litigation.

Stipulations, Agreements and Releases

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged and agreed, the Parties hereto hereby stipulate and mutually covenant and agree as follows:

5. Within seven (7) days of the Effective Date, the Parties shall file the Joint Petition for Approval of Partial Settlement attached hereto as Exhibit A with the Federal Maritime Commission.

6. Within seven (7) days of the Effective Date, the Parties shall file the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Claims With Prejudice and proposed Order granting same, collectively attached hereto as Exhibit B.

WPB

7. Subject to: (1) the Federal Maritime Commission approving the settlement requested in the Joint Petition attached hereto as Exhibit A, and (2) the District Court granting the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Remaining Claims Between them With Prejudice attached hereto as Exhibit B and the funds being disbursed from the Federal Court Registry as requested therein, each Party hereto does hereby mutually and jointly FULLY, FINALLY, AND FOREVER RELEASE, ACQUIT, AND DISCHARGE each other Party and their respective subsidiaries, affiliates, parent, holding, and sister companies, and any of their respective affiliates, as well as its and their respective insurers, attorneys, agents, predecessors, successors, assigns, employees, independent contractors, and representatives from any and all past, present, future claims and causes of action, whether known or unknown, liquidated or unliquidated, direct or contingent, whether based upon contract, tort, statute, common law, equity, or otherwise, based upon the transactions, occurrences, events, or matters alleged in the Litigation, including all claims, cross-claims, counter-claims, disputes, grievances, controversies, and causes of action alleged in the Litigation, including claims for injunctive relief, declaratory relief, attorney's fees, sanctions, bond claims, costs, expert witness fees, costs of service and process, non-recoverable costs, and any and all other litigation expenses relating to the prosecution and

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defense of the Litigation (collectively, the "Released Claims");² provided, however, that the foregoing mutual and joint release is not intended to and does not release any Party to this Agreement from any agreements, covenants, obligations, or undertakings of such Party contained in this Agreement. This Agreement does not release Sylvia Robledo d/b/a 81st Dolphin Parking or the Wharves from any claims either has against the other.

8. The Parties hereby further agree and they do hereby authorize and direct their respective attorneys to (1) take all such steps necessary in the FMC Proceeding to cause their claims against each other asserted therein to be dismissed with prejudice, and (2) take all step necessary in the Federal District Court Lawsuit to cause the Joint Motion to Disburse Funds held in Court Registry and to Dismiss Remaining Claims With Prejudice to be filed, and urge the District Court to grant the relief requested therein.

9. Each Party to this Agreement joins in the execution of this Agreement voluntarily and upon the advice of such Party's independent attorney. Each Party to this Settlement Agreement has to the complete satisfaction of such Party investigated all matters pertinent to this Agreement and to the Released Claims in the Litigation hereby forever released and discharged. Each Party to this Agreement relies solely upon such Party's legal counsel to advise such Party as to the legal

² For the avoidance of doubt, neither EZ Cruise nor Wharves are releasing any prospective claims that either may have against the other which may arise in the future due to conduct under the Ground Transportation Manual or otherwise.

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consequences of executing this Agreement, including any and all income tax consequences.

10. In regard to the Wharves' Ground Transportation Manual, the Wharves stipulates, acknowledges and agrees that:

a. the Wharves will not increase the Access Fee rates from those set out in the current version of its Ground Transportation Manual for one year;

b. the name, logos, design and color scheme currently utilized by Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking are approved by the Wharves, and the Wharves does not view Santa Fe Discount Parking, Inc. and EZ Cruise Parking as separate businesses and Operators;

c. all aspects of the graphics, signage and color scheme of the shuttle buses currently owned, operated and/or utilized by Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking are approved by the Wharves; and

d. Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking is not required to provide "pre-arranged Passenger information prior to entry onto PORT property" (as set forth in paragraph 5 – page 10 of the Ground Transportation Manual) in connection with its operations as an "Off-Port Parking User," and requirements in regard to arrangement or arranging of Passengers in the Ground Transportation Manual are not intended to apply to Off-Port Parking Users.

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11. No Party to this Agreement is relying upon any statement, representation, warranty, or prediction of any other Party or the attorney of any other Party in entering into this Agreement.

12. No Party to this Agreement has assigned, transferred, conveyed, or pledged to any third person or Party any of the Released Claims hereby released by such Party.

13. Each signatory to this Agreement represents and warrants that he or she has full and final authority to execute this Agreement on behalf of the respective Party. Each Party to this Agreement represents and warrants that (a) such Party has obtained each approval, authorization, and consent appropriate or necessary to execute, deliver, and perform this Agreement, and (b) this Agreement (i) has been duly authorized, executed, and delivered by such Party, and (ii) constitutes a binding, enforceable, and valid obligation of such Party.

14. If any action at law or in equity, including an action for declaratory relief, is brought to enforce or interpret the provisions of this Agreement, the prevailing Party shall be entitled to recover reasonable attorney's fees from the other Party, which fees may be set by the court in the trial of such action or may be enforced in a separate action brought for that purpose, and which fees shall be in addition to any other relief which may be awarded.

15. It is understood and agreed by the Parties hereto that this settlement is a compromise of the Released Claims in the Litigation which are disputed, and the concessions made in connection with this settlement are not to be construed as an

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admission of wrongdoing, liability, fault or otherwise on the part of any Party to this Agreement.

16. This Agreement, the recitals hereto, and all exhibits hereto collectively contain the entire agreement between the Parties hereto with regard to the matters set forth herein and shall be binding upon and inure to the benefit of the Parties hereto, jointly and severally, and the executors, administrators, personal representatives, heirs, successors and assigns of each Party.

17. This Agreement supersedes any and all other agreements, either oral or in writing, among the Parties to this Agreement with respect to the subject matter of this Agreement.

18. Any release given in this Agreement is for the benefit of the person or entity, individually and on behalf of themselves, their predecessors, successors, assigns, attorneys, attorneys in fact, employees, independent contractors, Insurers, agents, heirs and representatives, and all persons claiming by or through the person or entity, specifically named in the applicable release provision and such person's employees, agents, insurers, attorneys, heirs, executors, administrators, personal representatives, and assigns, and such entity's directors, officers, shareholders, general and limited partners, members, managers, employees, agents, representatives, attorneys, successors and assigns.

19. This Agreement is made and performable in Galveston County, Texas.

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20. The Parties to this Agreement agree to cooperate fully and execute, acknowledge and deliver any and all additional documentation and to take all additional actions that may be necessary or appropriate to give full force and effect to the basic terms and intent of this Agreement.

21. This Agreement shall become effective as of the Effective Date.

22. This Agreement is a negotiated document, and the Parties hereto agree that in the event of a dispute as to the meaning of a portion of this document, it shall not be construed against any Party hereto.

23. The Parties hereto agree to be bound by the provisions of this Agreement and each agrees to waive any benefit that might have otherwise been received from any final judgment that might otherwise have been entered in the Litigation.

24. All covenants, agreements, and releases contained in this Agreement shall survive execution and delivery of the additional instruments required to be executed and delivered by the Parties hereto.

25. No modification, amendment or waiver of any portion of this Agreement shall be effective unless it is in writing and signed by the Party against whom such modification, amendment or waiver is sought to be enforced.

26. This Agreement constitutes the entire, sole and only agreement of the Parties hereto and supersedes any prior understanding or written or oral agreements between the Parties respecting the subject matter of this Agreement.



27. In case any one or more of the provisions contained in this Agreement shall be held to be invalid, illegal or unenforceable in any respect for any reason, that such invalidity, illegality or unenforceability shall not affect any other provision hereof.

28. This Agreement may be executed in multiple counterparts, which together shall constitute a single original instrument.

29. Any executed signature page to this Settlement Agreement may be transmitted by facsimile transmission or email transmission to the other Parties, which shall constitute an original signature page for all purposes.

30. In the event that either:
(1) the Federal Maritime Commission does not approve the settlement requested in the Joint Petition attached hereto as Exhibit A, or
(2) the District Court does not grant the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Claims With Prejudice attached hereto as Exhibit B and the funds being disbursed from the Federal Court Registry as requested therein, this Agreement shall be null and void and shall have no force and effect.

SIGNATURE PAGES ATTACHED.

APPB

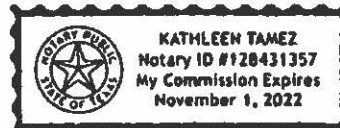
**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ CRUISE
PARKING ("EZ Cruise")**

By: Cynthia Tompkins
Title: President
Printed Name: Cynthia Tompkins

STATE OF TEXAS §
 §
COUNTY OF GALVESTON §

ACKNOWLEDGED before me on the 22nd day of
July 2021, by Cynthia Tompkins, the
President and authorized representative of Santa Fe Discount
Cruise Parking, Inc. d/b/a EZ Cruise Parking and on behalf of Santa Fe Discount
Cruise Parking, Inc. d/b/a EZ Cruise Parking.

Kathleen Tamez
Notary Public, State of Texas



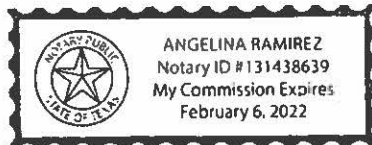
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THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES

By: Rodger E. Rees
Rodger E. Rees
Port Director/CEO

STATE OF TEXAS §
 §
COUNTY OF GALVESTON §

ACKNOWLEDGED before me on the 23rd day of July 2021, by Rodger E. Rees, the Port Director/CEO and authorized representative of the Board of Trustees of the Galveston Wharves and on behalf of the Board of Trustees of the Galveston Wharves.



Angelina Ramirez
Notary Public, State of Texas

APPROVED AS TO FORM:
[Signature]
Counsel to the Board of Trustees
of the Galveston Wharves

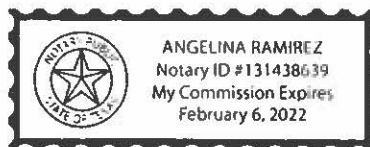
[Signature]

Galveston Port Facilities Corporation

By: Rodger E. Rees
Printed Name: Rodger E. Rees
Title: President

STATE OF TEXAS §
 §
COUNTY OF GALVESTON §

 ACKNOWLEDGED before me on the 23rd day of
July 2021, by Rodger E. Rees, the President and authorized
representative of Galveston Port Facilities Corporation and on behalf of Galveston
Port Facilities Corporation.



Angelina Ramirez
Notary Public, State of Texas

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EXHIBIT B

PARTIAL SETTLEMENT AGREEMENT

This Partial Settlement Agreement (the "Agreement") is entered into on the 20th day of July, 2021 (the "Effective Date") by and between the following parties: Lighthouse Parking Inc. ("Lighthouse"), and Board of Trustees of the Galveston Wharves ("Board") and Galveston Port Facilities Corporation ("GPFC") (each a "Party," and collectively the "Parties"). Hereafter, Board and GPFC are collectively referred to as "Wharves".

Recitals:

1. The Parties to this Agreement have agreed to compromise and settle all matters in dispute between them¹ in the following related FMC Proceeding and Federal District Court lawsuit (hereinafter collectively referred to for all purposes in this Agreement as the "Litigation"):
 - a. Docket No. 24-06, *Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking, Lighthouse Parking, Inc. and Sylvia Robledo d/b/a 81st Dolphin Parking v. The Board of Trustees of the Galveston Wharves and The Galveston Port Facilities Corporation* (the "FMC Proceeding"); and
 - b. Case No. 3:14-cv-00206; *Santa Fe Discount Cruise Parking, et al. v. The Board of Trustees of the Galveston Wharves, et al;* in the United States District Court for

¹ Sylvia Robledo d/b/a 81st Dolphin Parking and Wharves have not compromised and settled their claims against each other, which remain pending in the Litigation. Ms. Robledo is not a party to this Agreement.

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the Southern District of Texas, Houston Division (the "Federal District Court Lawsuit").

2. By entering into this Agreement, the Parties intend to compromise and settle, fully, finally, and forever, all disputes and controversies existing between or among them only with respect to the Released Claims (defined herein) asserted in the Litigation.

3. By entering into this Agreement, no Party is conceding any wrongdoing, liability, or fault by such Party or to any other Party.

4. The Parties enter into this Agreement solely to avoid the cost and uncertainty of continued litigation.

Stipulations, Agreements and Releases

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged and agreed, the Parties hereto hereby stipulate and mutually covenant and agree as follows:

5. Within seven (7) days of the Effective Date, the Parties shall file the Joint Petition for Approval of Partial Settlement attached hereto as Exhibit A with the Federal Maritime Commission.

6. Within seven (7) days of the Effective Date, the Parties shall file the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Claims With Prejudice and proposed Order granting same, collectively attached hereto as Exhibit B.

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7. Subject to: (1) the Federal Maritime Commission approving the settlement requested in the Joint Petition attached hereto as Exhibit A, and (2) the District Court granting the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Remaining Claims Between them With Prejudice attached hereto as Exhibit B and the funds being disbursed from the Federal Court Registry as requested therein, each Party hereto does hereby mutually and jointly FULLY, FINALLY, AND FOREVER RELEASE, ACQUIT, AND DISCHARGE each other Party and their respective subsidiaries, affiliates, parent, holding, and sister companies, and any of their respective affiliates, as well as its and their respective insurers, attorneys, agents, predecessors, successors, assigns, employees, independent contractors, and representatives from any and all past, present, future claims and causes of action, whether known or unknown, liquidated or unliquidated, direct or contingent, whether based upon contract, tort, statute, common law, equity, or otherwise, based upon the transactions, occurrences, events, or matters alleged in the Litigation, including all claims, cross-claims, counter-claims, disputes, grievances, controversies, and causes of action alleged in the Litigation, including claims for injunctive relief, declaratory relief, attorney's fees, sanctions, bond claims, costs, expert witness fees, costs of service and process, non-recoverable costs, and any and all other litigation expenses relating to the prosecution and defense of the Litigation (collectively, the "Released Claims"); provided, however, that the foregoing mutual and joint release is not intended to and does not release any Party to this Agreement from any agreements, covenants, obligations, or

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undertakings of such Party contained in this Agreement. This Agreement does not release Sylvia Robledo d/b/a 81st Dolphin Parking or the Wharves from any claims either has against the other.

8. The Parties hereby further agree and they do hereby authorize and direct their respective attorneys to (1) take all such steps necessary in the FMC Proceeding to cause their claims against each other asserted therein to be dismissed with prejudice, and (2) take all step necessary in the Federal District Court Lawsuit to cause the Joint Motion to Disburse Funds held in Court Registry and to Dismiss Remaining Claims With Prejudice to be filed, and urge the District Court to grant the relief requested therein.

9. Each Party to this Agreement joins in the execution of this Agreement voluntarily and upon the advice of such Party's independent attorney. Each Party to this Settlement Agreement has to the complete satisfaction of such Party investigated all matters pertinent to this Agreement and to the Released Claims in the Litigation hereby forever released and discharged. Each Party to this Agreement relies solely upon such Party's legal counsel to advise such Party as to the legal consequences of executing this Agreement, including any and all income tax consequences.

10. No Party to this Agreement is relying upon any statement, representation, warranty, or prediction of any other Party or the attorney of any other Party in entering into this Agreement.



11. No Party to this Agreement has assigned, transferred, conveyed, or pledged to any third person or Party any of the Released Claims hereby released by such Party.

12. Each signatory to this Agreement represents and warrants that he or she has full and final authority to execute this Agreement on behalf of the respective Party. Each Party to this Agreement represents and warrants that (a) such Party has obtained each approval, authorization, and consent appropriate or necessary to execute, deliver, and perform this Agreement, and (b) this Agreement (i) has been duly authorized, executed, and delivered by such Party, and (ii) constitutes a binding, enforceable, and valid obligation of such Party.

13. If any action at law or in equity, including an action for declaratory relief, is brought to enforce or interpret the provisions of this Agreement, the prevailing Party shall be entitled to recover reasonable attorney's fees from the other Party, which fees may be set by the court in the trial of such action or may be enforced in a separate action brought for that purpose, and which fees shall be in addition to any other relief which may be awarded.

14. It is understood and agreed by the Parties hereto that this settlement is a compromise of the Released Claims in the Litigation which are disputed, and the concessions made in connection with this settlement are not to be construed as an admission of wrongdoing, liability, fault or otherwise on the part of any Party to this Agreement.

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15. This Agreement, the recitals hereto, and all exhibits hereto collectively contain the entire agreement between the Parties hereto with regard to the matters set forth herein and shall be binding upon and inure to the benefit of the Parties hereto, jointly and severally, and the executors, administrators, personal representatives, heirs, successors and assigns of each Party.

16. This Agreement supersedes any and all other agreements, either oral or in writing, among the Parties to this Agreement with respect to the subject matter of this Agreement.

17. Any release given in this Agreement is for the benefit of the person or entity, individually and on behalf of themselves, their predecessors, successors, assigns, attorneys, attorneys in fact, employees, independent contractors, Insurers, agents, heirs and representatives, and all persons claiming by or through the person or entity, specifically named in the applicable release provision and such person's employees, agents, insurers, attorneys, heirs, executors, administrators, personal representatives, and assigns, and such entity's directors, officers, shareholders, general and limited partners, members, managers, employees, agents, representatives, attorneys, successors and assigns.

18. This Agreement is made and performable in Galveston County, Texas.

19. The Parties to this Agreement agree to cooperate fully and execute, acknowledge and deliver any and all additional documentation and to take all



additional actions that may be necessary or appropriate to give full force and effect to the basic terms and intent of this Agreement.

20. This Agreement shall become effective as of the Effective Date.

21. This Agreement is a negotiated document, and the Parties hereto agree that in the event of a dispute as to the meaning of a portion of this document, it shall not be construed against any Party hereto.

22. The Parties hereto agree to be bound by the provisions of this Agreement and each agrees to waive any benefit that might have otherwise been received from any final judgment that might otherwise have been entered in the Litigation.

23. All covenants, agreements, and releases contained in this Agreement shall survive execution and delivery of the additional instruments required to be executed and delivered by the Parties hereto.

24. No modification, amendment or waiver of any portion of this Agreement shall be effective unless it is in writing and signed by the Party against whom such modification, amendment or waiver is sought to be enforced.

25. This Agreement constitutes the entire, sole and only agreement of the Parties hereto and supersedes any prior understanding or written or oral agreements between the Parties respecting the subject matter of this Agreement.

26. In case any one or more of the provisions contained in this Agreement shall be held to be invalid, illegal or unenforceable in any respect for any reason,



that such invalidity, illegality or unenforceability shall not affect any other provision hereof.

27. This Agreement may be executed in multiple counterparts, which together shall constitute a single original instrument.

28. Any executed signature page to this Settlement Agreement may be transmitted by facsimile transmission or email transmission to the other Parties, which shall constitute an original signature page for all purposes.

29. In the event that either:

(1) the Federal Maritime Commission does not approve the settlement requested in the Joint Petition attached hereto as Exhibit A, or

(2) the District Court does not grant the Joint Motion to Disburse Funds Held in Court Registry and to Dismiss Claims With Prejudice attached hereto as Exhibit B and the funds being disbursed from the Federal Court Registry as requested therein, this Agreement shall be null and void and shall have no force and effect.

SIGNATURE PAGES ATTACHED.

AB

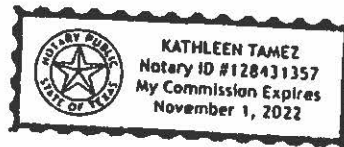
LIGHTHOUSE PARKING, INC. ("Lighthouse")

By: [Signature]
Title: Vice President
Printed Name: Henry Robledo

STATE OF TEXAS §
 §
COUNTY OF GALVESTON §

ACKNOWLEDGED before me on the 20th day of July 2021, by Henry Robledo, the vice president and authorized representative of Lighthouse Parking, Inc. and on behalf of Lighthouse Parking, Inc.

Kathleen Tamez
Notary Public, State of Texas



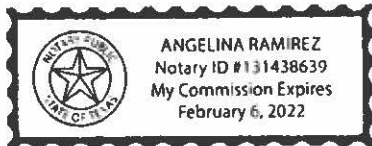
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THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES

By: Rodger E. Rees
Rodger E. Rees
Port Director/CEO

STATE OF TEXAS §
 §
COUNTY OF GALVESTON §

ACKNOWLEDGED before me on the 23rd day of July 2021, by Rodger E. Rees, the Port Director/CEO and authorized representative of the Board of Trustees of the Galveston Wharves and on behalf of the Board of Trustees of the Galveston Wharves.



Angelina Ramirez
Notary Public, State of Texas

APPROVED AS TO FORM:
[Signature]
Counsel to the Board of Trustees
of the Galveston Wharves

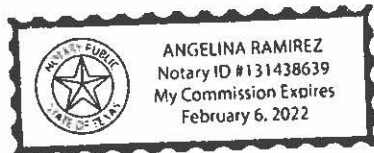
AMB

Galveston Port Facilities Corporation

By: Rodger E. Rees
Printed Name: Rodger E. Rees
Title: President

STATE OF TEXAS §
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COUNTY OF GALVESTON §

ACKNOWLEDGED before me on the 23rd day of July 2021, by Rodger E. Rees, the President and authorized representative of Galveston Port Facilities Corporation and on behalf of Galveston Port Facilities Corporation.



Angelina Ramirez
Notary Public, State of Texas

NRB